

**IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLORADO
CHIEF JUDGE MARCIA S. KRIEGER**

Courtroom Deputy: Patricia Glover
Court Reporter: Tamara Hoffschildt

Date: June 11, 2018

Civil Action No. 14-cv-02403-MSK-MJW

Parties:

AARON S. RABIDUE,

Plaintiff,

v.

HONG DANG,

Defendant.

Counsel:

Ryan Sugden
Zane Gilmer

Christopher Alber

COURTROOM MINUTES

HEARING: Jury Trial Day 1

8:37 a.m. Court in session

Mr. Rabidue is present.

The Court address preliminary matters with counsel.

No sequestration of witnesses is requested.

8:50 a.m. Jury panel present.

Jurors sworn for *voir dire*.

Voir dire by the Court.

Counsel exercise their challenges.

Jurors sworn to try the case.

10:15 a.m. Court in recess

10:43 a.m. Court in session

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10:45 a.m. Jury present.

Introductory jury instructions given by the Court.

Opening Statements.

Witness sworn for the plaintiff : Aaron Rabidue :

11:29 a.m. Direct examination of witness by Mr. Sugden.

11:48 a.m. Jury excused.

11:49 a.m. Court in recess

1:21 p.m. Court n session

Juror #343730 is excused.

1:26 p.m. Jury present.

Continued direct examination of witness by Mr. Sugden.

EXHIBITS: RECEIVED: 3

ORDER: The Motion in *Limine* (**Doc. #127**) is **GRANTED** in part and **DENIED** in part as set forth on the record.

Cross examination of witness by Mr. Alber.

Redirect examination of witness by Mr. Sugden

Witness sworn for the plaintiff : Hong Dang :

2:06 p.m. Direct examination of witness by Mr. Gilmer.

Cross examination of witness by Mr. Alber.

Redirect examination of witness by Mr. Gilmer.

2:44 p.m. Court in recess

3:04 p.m. Court in session

3:05 p.m. Jury present.

Witness sworn for the plaintiff : Dr. Meredbeth Bruntz :

3:05 p.m. Direct examination of witness by Mr. Sugden.

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Cross examination of witness by Mr. Alber.

Redirect examination of witness by Mr. Sugden.

Re-cross examination of witness by Mr. Alber.

The plaintiff rests.

Defendant has no evidence to present.

3:44 p.m. Jury excused until 9:00 a.m. tomorrow.

No motions by the parties.

Charging conference.

3:52 p.m. Court in recess
4:15 p.m. Court in session

Charging conference continues and completed.

The Court authorizes lunch for the jury beginning June 12, 2018 and until such time as the trial is completed.

4:25 p.m. Court in recess

Total Time: 4 hours 59 minutes
Trial continued.